

Public Law 116–34
116th Congress

An Act

July 29, 2019
[H.R. 1327]

To extend authorization for the September 11th Victim Compensation Fund of 2001 through fiscal year 2092, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

Never Forget
the Heroes:
James Zadroga,
Ray Pfeifer, and
Luis Alvarez
Permanent
Authorization of
the September
11th Victim
Compensation
Fund Act.
49 USC 40101
note.

SECTION 1. SHORT TITLE.

This Act may be cited as the “Never Forget the Heroes: James Zadroga, Ray Pfeifer, and Luis Alvarez Permanent Authorization of the September 11th Victim Compensation Fund Act”.

SEC. 2. SEPTEMBER 11TH VICTIM COMPENSATION FUND OF 2001.

(a) **AUTHORIZATION AND FUNDING.**—Section 410 of the Air Transportation Safety and System Stabilization Act (49 U.S.C. 40101 note) is amended—

(1) in subsection (c), by striking “\$4,600,000,000” and all that follows through “expended” and inserting “such sums as may be necessary for fiscal year 2019 and each fiscal year thereafter through fiscal year 2092, to remain available until expended”; and

(2) in subsection (e), by striking “Upon completion of all payments under this title” and inserting “On October 1, 2092, or at such time thereafter as all funds are expended”.

49 USC 40101
note.

(b) **EXTENSION OF LIMITATION ON CLAIM FILING.**—Section 405(a)(3)(B) of the Air Transportation Safety and System Stabilization Act (40 U.S.C. 40101 note) is amended by striking “the date that is 5 years after the date of enactment of the James Zadroga 9/11 Victim Compensation Fund Reauthorization Act” and inserting “October 1, 2090”.

(c) **COMPENSATION REDUCED BY SPECIAL MASTER DUE TO LACK OF FUNDING.**—Section 406(d)(2) of the Air Transportation Safety and System Stabilization Act (49 U.S.C. 40101 note) is amended by adding at the end the following:

“(D) **COMPENSATION REDUCED BY SPECIAL MASTER DUE TO INSUFFICIENT FUNDING.**—

Effective date.
Determination.

“(i) **IN GENERAL.**—In any claim in Group B as described in section 405(a)(3)(C)(iii) in which, prior to the enactment of the Never Forget the Heroes: James Zadroga, Ray Pfeifer, and Luis Alvarez Permanent Authorization of the September 11th Victim Compensation Fund Act, the Special Master had advised the claimant that the amount of compensation has been reduced on the basis of insufficient funding, the Special Master shall, in the first fiscal year beginning after sufficient funding becomes available under such